

dismissal should not be imposed for Plaintiff's failure to timely file proof of service on all defendants (CRC 3.110.(b)&(f)) on 10/27/2026 at 8:30 a.m..

Moving party to give notice of ruling and of the CMC.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602204	LUSCA vs HILLTOP GEOTECHNICAL, INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Moving party: Defendant Hilltop Geotechnical, Inc.

Responding party: Plaintiff Lorenzo Lusca

Plaintiff Lorenzo Lusca ("Plaintiff") alleges that Defendant Hilltop Geotechnical, Inc. ("Defendant" or "Hilltop") employed him as a residential inspector on residential development projects from 11/20/23 until 6/20/25. Plaintiff inspected ground-up residential construction including retaining walls and plumbing to ensure compliance with Riverside County Codes, Municipal Codes, and California Building Codes. Plaintiff alleges that Area Manager Jason Baechel repeatedly directed him to approve non-compliant work that Plaintiff believed violated governing codes and implicated life-safety concerns. Plaintiff further alleges Defendant's agents/supervisors instructed him to "stop looking" for violations, "be easy" with corrections, to "pass" homes, and "choose [his] battles."

Plaintiff also alleges that on 12/16/24, he notified his supervisor Michael Carrillo and Human Resources that he intended to take leave for the expected birth of his child. He submitted to HR a formal request for leave on 1/9/25. Defendant allegedly reduced his assigned hours on 1/15/25, canceled his benefits during his leave, and terminated him on 6/20/25.

The operative Complaint, filed 4/10/26, asserts: (1) associational disability discrimination (FEHA); (2) associational pregnancy discrimination (FEHA); (3) failure to prevent discrimination (FEHA); (4) failure to accommodate (FEHA); (5) failure to engage in the interactive process (FEHA); (6) retaliation (FEHA); (7) retaliation (CFRA); (8) interference (CFRA); (9) retaliation (FMLA); (10) interference (FMLA); (11) Labor Code §1102.5; (12) meal-period violations; (13) rest-period violations; (14) waiting-time penalties; (15) inaccurate wage statements; (16) unfair business practices; and (17) wrongful termination (public policy).

Now, Defendant moves to strike paragraphs 46, 54, 63, 74, 75, 83, 84, 94, 95, 105, 115, 124, 133, 140, 141, and 165, together with Prayer No. 9 for punitive and exemplary damages. It argues that the pleading fails to allege oppression, fraud, or malice, and therefore fails to plead facts supporting punitive damages. Defendant also argues that Plaintiff does not allege facts showing that an officer, director, or managing agent had advance knowledge of the unfitness of its staff or authorized/ratified the alleged conduct.

In opposition, Plaintiff argues that Defendant improperly converts the clear-and-convincing evidentiary burden that applies at trial into a heightened pleading requirement. Plaintiff contends that Defendant's alleged pressure to approve the non-compliant work, to

disregard life-safety violations, followed by reduced hours, cancellation of benefits, and termination after requesting accommodation and engaging in protected activity, supports an inference of retaliation and conscious disregard. Plaintiff also asserts that the motion is overbroad because the 16 challenged paragraphs contain allegations relevant to Defendant's policy knowledge, retaliatory motive, authorization, ratification, and pattern-and-practice evidence relevant to the underlying causes of action.

In reply, Defendant repeats its arguments from the moving papers.

Analysis

Meet and Confer

CCP § 435.5 requires a meet and confer process via *phone, videoconferencing, or in person* at least five (5) days before filing a motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (Code Civ. Proc., §§ 430.41(a)(1), 435.5(a)(1).) Defense counsel declares that the parties met and conferred telephonically on 6/8/26. (Francisco Decl., ¶ 2.) Defendant complied.

Motion to Strike

A motion to strike may remove irrelevant, false, or improper matter. (Code Civ. Proc., § 436.) The court reads the complaint as a whole and assumes the pled facts are true. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) A plaintiff must plead ultimate facts showing entitlement to such relief. (*Id.*)

Malice or oppression

In order to plead punitive damages, a plaintiff must plead allegations of fraud, malice, or oppression with sufficient particularity. (*Hilliard v. AH Robbins Co.* (1983) 148 Cal.App.3d 374, 392.)

Malice is currently defined in the statute as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294(c)(1).) Oppression is defined as “despicable conduct that subjects to a cruel and unjust hardship in conscious disregard of that person's rights. (Civ. Code § 3294(c)(2).) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294(c)(3).)

Here, the Complaint sufficiently alleges conduct that could support malice or oppression. The complaint alleges that Defendant's Area Manager repeatedly directed Plaintiff to approve non-compliant construction that Plaintiff identified as involving life-safety issues. (Compl., ¶ 14.) Specifically, it alleges that Defendant “pressured Plaintiff to disregard building codes and approve plans with non-compliant electrical work,” “discouraged Plaintiff from reporting homes that were not up to code,” “instructed Plaintiff to ‘stop looking’ for violations of the code,” “disapproved of

Plaintiff's corrections on inspection reports," and took adverse actions including and up to terminating him after he requested protected family leave and reporting violations. (*Id.*, ¶¶ 14-15, 18-28.)

Taken as true, retaliating against an employee for reporting safety violations and exercising protected leave rights could constitute despicable conduct and conscious disregard of that employee's rights. At this stage, the Complaint need only allege ultimate facts that could support the remedy when accepted as true.

Corporate liability

Civil Code §3294 allows a plaintiff to seek punitive damages, but that a corporate employer is not liable unless the action was taken by an officer, director or managing agent. A managing agent who has the ability to hire and fire employees does not render a supervisory employee a managing agent. (*White v. Ultramar* (1999) 21 Cal.4th 563, 575.) Instead, a managing agent is a corporate employee who exercises "substantial independent authority and judgment in their corporate decision making so that their decisions ultimately determine corporate policy. (*Id.* at 566-567.) "The scope of a corporate employee's discretion and authority under our test is therefore a question of fact for decision on a case-by-case basis." (*Id.* at 567.) "The managing agent must be someone who exercises substantial discretionary authority over decisions that ultimately determine corporate policy." (*Id.* at 573.)

The real issue here is whether a managing agent was involved. The complaint identifies Baechel as an "Area Manager" (Compl., ¶ 14) and Carrillo as a "supervisor" (*id.*, ¶ 15). However, it alleges no facts describing their authority to formulate or determine Defendant's corporate policies. It also does not identify the person who reduced Plaintiff's hours, canceled his benefits, or made the termination decision. The challenged paragraphs only generally allege that unspecified "managers," "officers," and "managing agents" authorized or ratified the misconduct. (Compl., ¶¶ 46, 54, 63, 74-75, 83-84, 94-95, 105, 115, 124, 133.) They do not allege who exercised corporate-policy authority or what that authority was. As such, the Complaint does not sufficiently plead corporate responsibility under Civ. Code §3294(b).

Nonetheless, the challenged paragraphs contain other facts and allegations supporting Plaintiff's claims. Those matters may remain relevant even if the complaint presently fails to allege corporate liability. Accordingly, the Court does not strike the paragraphs in their entirety. The Court strikes only the portions expressly requesting punitive damages.

Summary

Grant the motion to strike prayer no. 9 and only the portions of the challenged paragraphs expressly seeking punitive or exemplary damages (para. 46, 54, 63, 74, 75, 83, 84, 94, 95, 105, 115, 124, 133, 140, 141, and 165.) Allow 30 days' leave to amend.